

An Act

ENROLLED SENATE
BILL NO. 1543

By: Coleman of the Senate

and

Gise of the House

An Act relating to driving under the influence; amending Section 13, Chapter 366, O.S.L. 2024, as amended by Section 6, Chapter 187, O.S.L. 2025 (21 O.S. Supp. 2025, Section 20M), which relates to Class C2 felony offenses; adding offense; conforming statutory language and references; updating statutory language and references; amending 47 O.S. 2021, Section 11-902, as amended by Section 1, Chapter 347, O.S.L. 2025 (47 O.S. Supp. 2025, Section 11-902), which relates to persons under the influence of alcohol or other intoxicating substance; authorizing aggregation of certain offenses; creating felony offense; conforming language; updating statutory references; repealing 47 O.S. 2021, Section 11-902, as amended by Section 3, Chapter 172, O.S.L. 2025 (47 O.S. Supp. 2025, Section 11-902), which relates to persons under the influence of alcohol or other intoxicating substance; repealing 47 O.S. 2021, Section 11-902, as amended by Section 6, Chapter 305, O.S.L. 2025 (47 O.S. Supp. 2025, Section 11-902), which relates to persons under the influence of alcohol or other intoxicating substance; repealing 47 O.S. 2021, Section 11-902, as amended by Section 33, Chapter 486, O.S.L. 2025 (47 O.S. Supp. 2025, Section 11-902), which relates to persons under the influence of alcohol or other intoxicating substance; and providing an effective date.

SUBJECT: Driving under the influence

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY Section 13, Chapter 366, O.S.L. 2024, as amended by Section 6, Chapter 187, O.S.L. 2025 (21 O.S. Supp. 2025, Section 20M), is amended to read as follows:

Section 20M. A. ~~Upon the effective date of this act~~ On or after January 1, 2026, Class C2 shall include the following criminal offenses:

1. Theft of anhydrous equipment, as provided for in subsection B of Section 11-10 of Title 2 of the Oklahoma Statutes;

2. Branding, misbranding, marking, or mismarking any domestic animal with intent to defraud, as provided for in Section 268 of Title 4 of the Oklahoma Statutes;

3. Injuring, destroying, or attempting to injure or destroy any pipeline transportation system, as provided for in subsection C of Section 6.1 of Title 17 of the Oklahoma Statutes;

4. Embezzlement by a county treasurer or other officer, as provided for in Section 641 of Title 19 of the Oklahoma Statutes;

5. Giving or offering any bribe to an executive officer, as provided for in Section 265 of ~~Title 21 of the Oklahoma Statutes~~ this title;

6. Receiving or agreeing to receive a bribe by an executive officer or person elected or appointed to an executive office, as provided for in Section 266 of ~~Title 21 of the Oklahoma Statutes~~ this title;

7. Entry into a restricted area of a building or grounds using or carrying a deadly or dangerous weapon or firearm or engaging in acts of violence that result in great bodily injury, as provided for in paragraph 1 of subsection B of Section 282 of ~~Title 21 of the Oklahoma Statutes~~ this title;

8. Forcefully or fraudulently preventing the Legislature from meeting or organizing, as provided for in Section 301 of ~~Title 21 of the Oklahoma Statutes~~ this title;

9. Forcefully or fraudulently compelling or attempting to compel the Legislature to adjourn or disperse, as provided for in Section 303 of ~~Title 21 of the Oklahoma Statutes~~ this title;

10. Compelling or attempting to compel either house of the Legislature to pass, amend, or reject any bill or resolution, grant or refuse any petition, or to perform or omit to perform any other official act, as provided for in Section 305 of ~~Title 21 of the Oklahoma Statutes~~ this title;

11. Offering to give a bribe to any member of the Legislature in order to influence the member in giving or withholding a vote, as provided for in Section 308 of ~~Title 21 of the Oklahoma Statutes~~ this title;

12. Asking, receiving, or agreeing to receive any bribe by a member of the Legislature, as provided for in Section 309 of ~~Title 21 of the Oklahoma Statutes~~ this title;

13. Entering a fort, magazine, arsenal, armory, arsenal yard, or encampment and seizing or taking away arms, ammunition, military stores, or supplies belonging to the state, as provided for in Section 350 of ~~Title 21 of the Oklahoma Statutes~~ this title;

14. Carrying, causing to be carried, or publicly displaying any red flag or other emblem or banner indicating disloyalty to the ~~Government~~ government of the United States, as provided for in Section 374 of ~~Title 21 of the Oklahoma Statutes~~ this title;

15. Bribery by a fiduciary, as provided for in subsection A of Section 380 of ~~Title 21 of the Oklahoma Statutes~~ this title;

16. Bribery of a fiduciary, as provided for in subsection B of Section 380 of ~~Title 21 of the Oklahoma Statutes~~ this title;

17. Commercial bribery of an insured depository institution or credit union, as provided in Section 380.1 of ~~Title 21 of the Oklahoma Statutes~~ this title;

18. Accepting or requesting a bribe by public officers or employees of this state, as provided for in Section 382 of ~~Title 21 of the Oklahoma Statutes~~ this title;

19. Offering or giving a bribe to any judicial officer, as provided for in Section 383 of ~~Title 21 of the Oklahoma Statutes~~ this title;

20. Attempting to influence a juror, as provided for in Section 388 of ~~Title 21 of the Oklahoma Statutes~~ this title;

21. Conspiracy to commit a felony, as provided for in subsection C of Section 421 of ~~Title 21 of the Oklahoma Statutes~~ this title;

22. Conspiring to commit any act against the peace of the state by two or more persons outside of the state, as provided for in Section 422 of ~~Title 21 of the Oklahoma Statutes~~ this title;

23. Conspiring to commit any act against the state by two or more persons, as provided for in Section 424 of ~~Title 21 of the Oklahoma Statutes~~ this title;

24. Attempting to avoid a roadblock by failing to stop, passing by or through such roadblock without permission, as provided for in Section 540B of ~~Title 21 of the Oklahoma Statutes~~ this title;

25. Fraudulently producing an infant in order to intercept the inheritance or distribution of any personal estate or real estate, as provided for in Section 578 of ~~Title 21 of the Oklahoma Statutes~~ this title;

26. Maiming by inflicting upon ~~one's self~~ oneself any disabling injury to ~~escape any legal duty~~, as provided for in Section 752 of ~~Title 21 of the Oklahoma Statutes~~ this title;

27. Financial exploitation of an elderly or disabled adult with funds, assets, or property valued at One Hundred Thousand Dollars (\$100,000.00) or less, as provided for in paragraph 2 of subsection B of Section 843.4 of ~~Title 21 of the Oklahoma Statutes~~ this title;

28. Conducting gambling games, as provided for in Section 941 of ~~Title 21 of the Oklahoma Statutes~~ this title;

29. Using a house, room, or place to conduct gambling games, as provided for in Section 946 of ~~Title 21 of the Oklahoma Statutes~~ this title;

30. Engaging or participating in illegal gambling games by a public officer, as provided for in Section 948 of ~~Title 21 of the Oklahoma Statutes~~ this title;

31. Commercial gambling, as provided for in Section 982 of ~~Title 21 of the Oklahoma Statutes~~ this title;

32. Letting premises for the purpose of betting on races or receiving, registering, recording, or forwarding any money or thing of value to a racetrack for betting purposes, as provided for in paragraphs 2 through 6 of subsection A of Section 991 of ~~Title 21 of the Oklahoma Statutes~~ this title;

33. Using the ~~terms~~ term "prize" or "gift" in a manner that is untrue or misleading, as provided for in Section 996.3 of ~~Title 21 of the Oklahoma Statutes~~ this title;

34. Advocating criminal syndicalism, sabotage, or the necessity, propriety, or expediency of doing any act of physical violence or unlawful act as a means of accomplishing any industrial or political ends, change, or revolution, as provided for in subsection A of Section 1327 of ~~Title 21 of the Oklahoma Statutes~~ this title;

35. Arson in the fourth degree by attempting to set fire to or burn any building or property, as provided for in subsection A of Section 1404 of ~~Title 21 of the Oklahoma Statutes~~ this title;

36. Delivering to another any merchandise for which any bill of lading, receipt, or voucher has been issued and the value of the property is Fifteen Thousand Dollars (\$15,000.00) or more, as provided for in paragraph 4 of Section 1416 of ~~Title 21 of the Oklahoma Statutes~~ this title;

37. Burglary in the second degree by breaking and entering into any commercial building or by breaking and entering into a coin-operated or vending machine, as provided for in subsection A of Section 1435 of ~~Title 21 of the Oklahoma Statutes~~ this title;

38. Embezzlement of property valued at Fifteen Thousand Dollars (\$15,000.00) or more, as provided for in paragraph 4 of subsection B of Section 1451 of ~~Title 21 of the Oklahoma Statutes~~ this title;

39. Embezzlement by a county or state officer, as provided for in subsection C of Section 1451 of ~~Title 21 of the Oklahoma Statutes~~ this title;

40. False personation of another, as provided for in Section 1531 of ~~Title 21 of the Oklahoma Statutes~~ this title;

41. Receiving money or property intended for another with a value of Fifteen Thousand Dollars (\$15,000.00) or more, as provided for in paragraph 4 of Section 1532 of ~~Title 21 of the Oklahoma Statutes~~ this title;

42. Use of a motor vehicle or motor-driven cycle for the purpose of falsely impersonating a law enforcement officer which causes another person to be injured, defrauded, harassed, vexed, or annoyed, as provided for in paragraph 2 of subsection F of Section 1533 of ~~Title 21 of the Oklahoma Statutes~~ this title;

43. Obtaining, attempting to obtain, or presenting to a financial institution personal, financial, or other information of another person, as provided for in Section 1533.2 of ~~Title 21 of the Oklahoma Statutes~~ this title;

44. Obtaining property by trick, deception, or by means of a false or bogus check and the property value is Fifteen Thousand Dollars (\$15,000.00) or more, as provided for in paragraph 3 of subsection A of Section 1541.2 of ~~Title 21 of the Oklahoma Statutes~~ this title;

45. Making, drawing, uttering, or delivering two or more false or bogus checks and the value is Fifteen Thousand Dollars (\$15,000.00) or more, as provided for in paragraph 3 of subsection A of Section 1541.3 of ~~Title 21 of the Oklahoma Statutes~~ this title;

46. Selling, exchanging, or delivering any forged or counterfeited promissory note, check, bill, draft, or other evidence of debt knowing the same is forged or counterfeited and the value of

the instrument is Fifteen Thousand Dollars (\$15,000.00) or more, as provided for in paragraph 4 of subsection A of Section 1577 of ~~Title 21 of the Oklahoma Statutes~~ this title;

47. Possession of any forged, altered, or counterfeited negotiable note, bill, draft, or other evidence of debt and the value of the instrument is Fifteen Thousand Dollars (\$15,000.00) or more, as provided for in paragraph 4 of subsection A of Section 1578 of ~~Title 21 of the Oklahoma Statutes~~ this title;

48. Possession of any forged or counterfeited instrument with intent to injure or defraud and the value of the instrument is Fifteen Thousand Dollars (\$15,000.00) or more, as provided for in paragraph 4 of subsection A of Section 1579 of ~~Title 21 of the Oklahoma Statutes~~ this title;

49. Uttering or publishing as true any forged, altered, or counterfeited instrument or counterfeit coins and the value of the instrument is Fifteen Thousand Dollars (\$15,000.00) or more, as provided for in paragraph 4 of subsection A of Section 1592 of ~~Title 21 of the Oklahoma Statutes~~ this title;

50. Exhibiting false, forged, or altered books, papers, vouchers, security, or other instruments of evidence to any public officer or board with intent to deceive, as provided for in Section 1632 of ~~Title 21 of the Oklahoma Statutes~~ this title;

51. Destroying, altering, mutilating, or falsifying any books, papers, writing, or securities belonging to a corporation or association with intent to defraud, as provided for in Section 1635 of ~~Title 21 of the Oklahoma Statutes~~ this title;

52. Larceny of lost property and the value of the property is Fifteen Thousand Dollars (\$15,000.00) or more, as provided for in paragraph 4 of Section 1702 of ~~Title 21 of the Oklahoma Statutes~~ this title;

53. Grand larceny and the value of the property is Fifteen Thousand Dollars (\$15,000.00) or more, as provided for in paragraph 4 of subsection A of Section 1705 of ~~Title 21 of the Oklahoma Statutes~~ this title;

54. Grand larceny in any dwelling house or vessel, as provided for in Section 1707 of ~~Title 21 of the Oklahoma Statutes~~ this title;

55. Larceny of any evidence of debt or other written instrument, as provided for in Section 1709 of ~~Title 21 of the Oklahoma Statutes~~ this title;

56. Buying or receiving any property that has been stolen, embezzled, or obtained by false pretense or robbery and has a value of Fifteen Thousand Dollars (\$15,000.00) or more, as provided for in paragraph 3 of subsection A of Section 1713 of ~~Title 21 of the Oklahoma Statutes~~ this title;

57. Buying or receiving any construction equipment or farm equipment that has been stolen, embezzled, or obtained by false pretense or robbery, as provided for in Section 1713.1 of ~~Title 21 of the Oklahoma Statutes~~ this title;

58. Bringing into this state the stolen property of another obtained from another state or country, as provided for in Section 1715 of ~~Title 21 of the Oklahoma Statutes~~ this title;

59. Larceny of livestock or implement of husbandry, as provided for in subsection A of Section 1716 of ~~Title 21 of the Oklahoma Statutes~~ this title;

60. Larceny of a dog, as provided for in Section 1718 of ~~Title 21 of the Oklahoma Statutes~~ this title;

61. Grand larceny of exotic livestock, as provided for in Section 1719.2 of ~~Title 21 of the Oklahoma Statutes~~ this title;

62. Larceny of an aircraft, automobile, construction equipment, or farm equipment, valued at Fifty Thousand Dollars (\$50,000.00) or more, as provided for in Section 1720 of ~~Title 21 of the Oklahoma Statutes~~ this title;

63. Tapping or drilling into a pipeline, as provided for in Section 1721 of ~~Title 21 of the Oklahoma Statutes~~ this title;

64. Taking any crude oil or gasoline from any pipe, pipeline, tank, tank car, or other receptacle or container and the value of

such product is One Thousand Dollars (\$1,000.00) or more, as provided for in paragraph 2 of Section 1722 of ~~Title 21 of the Oklahoma Statutes~~ this title;

65. Larceny of merchandise from a retailer or wholesaler and the value of the goods is Fifteen Thousand Dollars (\$15,000.00) or more, as provided for in paragraph 5 of subsection A of Section 1731 of ~~Title 21 of the Oklahoma Statutes~~ this title;

66. Larceny of trade secrets that is valued at Fifteen Thousand Dollars (\$15,000.00) or more, as provided for in Section 1732 of ~~Title 21 of the Oklahoma Statutes~~ this title;

67. Procuring, soliciting, selling, or receiving by fraudulent, deceptive, or false means two to ten telephone records without authorization, as provided for in paragraph 2 of subsection B of Section 1742.2 of ~~Title 21 of the Oklahoma Statutes~~ this title;

68. Masking, altering, or removing any locomotive or railway car lights or signals, as provided for in Section 1778 of ~~Title 21 of the Oklahoma Statutes~~ this title;

69. Mutilating, tearing, defacing, obliterating, or destroying any written instrument, value of Fifteen Thousand Dollars (\$15,000.00) or more, as provided for in Section 1779 of ~~Title 21 of the Oklahoma Statutes~~ this title;

70. Violations of the Oklahoma Computer Crimes Act, as provided for in paragraphs 1, 2, 3, 6, 7, 9, or 10 of subsection A of Section 1953 of ~~Title 21 of the Oklahoma Statutes~~ this title;

71. Contracting the sale of rights arising from a criminal act without providing for the forfeiture of the proceeds, as provided for in subsection A of Section 17 of Title 22 of the Oklahoma Statutes;

72. Violating any of the provisions of the Oklahoma Clean Air Act knowing that the violation places others in danger of death or serious bodily injury, as provided for in subsection B of Section 2-5-116 of Title 27A of the Oklahoma Statutes;

73. Violating any of the provisions of the Oklahoma Pollutant Discharge Elimination System Act knowing that the violation places others in imminent danger of death or serious bodily injury, as provided for in subparagraph a of paragraph 3 of subsection G of Section 2-6-206 of Title 27A of the Oklahoma Statutes;

74. Soliciting or accepting any bribe or money by a game warden in connection with the performance of his or her duties as a game warden, as provided for in subsection E of Section 3-201 of Title 29 of the Oklahoma Statutes;

75. Taking or enticing away an incapacitated or partially incapacitated person or person for whom a guardian has been appointed without consent of the guardian, as provided for in Section 4-904 of Title 30 of the Oklahoma Statutes;

76. Violating any of the provisions of the Viatical Settlements Act of 2008 if the value of the viatical settlement contract is more than Two Thousand Five Hundred Dollars (\$2,500.00) but not more than Thirty-five Thousand Dollars (\$35,000.00), as provided for in paragraph 2 of subsection F of Section 4055.14 of Title 36 of the Oklahoma Statutes;

77. Embezzlement of certain funds held in trust, value of Fifteen Thousand Dollars (\$15,000.00) or more, as provided for in ~~paragraph (2)~~ subsection B of Section 153 of Title 42 of the Oklahoma Statutes;

78. Providing any false statement of a material fact in an application for a certificate of title, as provided for in Section 4-108 of Title 47 of the Oklahoma Statutes;

79. Altering or forging any certificate of title issued by the Oklahoma Tax Commission, as provided for in Section 4-109 of Title 47 of the Oklahoma Statutes;

~~80. Perjury by making any false affidavit, as provided for in Section 6-302 of Title 47 of the Oklahoma Statutes;~~

~~81.~~ Creating, manufacturing, issuing, or selling security verification forms, as provided for in subsection B of Section 7-612 of Title 47 of the Oklahoma Statutes;

~~82.~~ 81. Committing two or more separate violations of driving under the influence of alcohol or other intoxicating substance within a period of one (1) year resulting in an aggregate offense as provided in Section 11-902 of Title 47 of the Oklahoma Statutes;

82. Committing a subsequent violation of driving under the influence of alcohol or other intoxicating substance within ten (10) years of being convicted of driving under the influence of alcohol or other intoxicating substance, causing a personal injury accident while driving under the influence of alcohol or other intoxicating substance, or driving under the influence of alcohol or other intoxicating substance while transporting a child, as provided for in paragraph ~~2~~ 3 of subsection C of Section 11-902 of Title 47 of the Oklahoma Statutes;

83. Operating a vehicle without a valid driver license for the class of vehicle being operated and causing an accident resulting in great bodily injury to another person, as provided for in subsection B of Section 11-905 of Title 47 of the Oklahoma Statutes;

84. Operating a crusher without a proper license and receiving, obtaining, or possessing any vehicle or property known to be stolen, as provided for in paragraph 2 of subsection B of Section 592.9 of Title 47 of the Oklahoma Statutes;

85. Selling a vehicle or other property to a crusher using false or altered identification or making a false declaration of ownership or lien status, as provided for in paragraph 3 of subsection B of Section 592.9 of Title 47 of the Oklahoma Statutes;

86. Owning, operating, or conducting a chop shop, transporting any motor vehicle or parts to or from a chop shop, or selling, transferring, purchasing, or receiving any motor vehicle or parts to or from a chop shop, as provided for in subsection A of Section 1503 of Title 47 of the Oklahoma Statutes;

87. Altering, counterfeiting, defacing, destroying, disguising, falsifying, forging, obliterating, or knowingly removing a vehicle identification number, as provided for in subsection B of Section 1503 of Title 47 of the Oklahoma Statutes;

88. Perjury by a public officer or employee who states as true any material matter knowing it to be false, as provided for in Section 36.5 of Title 51 of the Oklahoma Statutes;

89. Advocating by teaching, justifying, or becoming a member of or affiliated with the Communist Party or with any other party or organization that advocates for the revolution, sedition, treason, or overthrow of the government of the United States or the State of Oklahoma by a public officer or employee, as provided for in Section 36.6 of Title 51 of the Oklahoma Statutes;

90. Perjury by verifying under oath any report, map, or drawing required to be filed with the Corporation Commission knowing that such material is false, as provided for in Section 109 of Title 52 of the Oklahoma Statutes;

91. Asking, receiving, or agreeing to receive any gift or gratuity by any member of the Corporation Commission, as provided for in Section 118 of Title 52 of the Oklahoma Statutes;

92. Burglary in the first degree by a bail enforcer by breaking into and entering the dwelling house of any defendant or third party for purposes of recovery or attempted recovery of a defendant, as provided for in subsection A of Section 1350.6 of Title 59 of the Oklahoma Statutes;

93. Distributing, dispensing, transporting, or possessing a controlled dangerous substance or soliciting a person less than eighteen (18) years of age to cultivate, distribute, or dispense a controlled dangerous substance, as provided for in paragraph 1 of subsection A of Section 2-401 of Title 63 of the Oklahoma Statutes;

94. Creating, distributing, transporting, or possessing a counterfeit controlled dangerous substance, as provided for in paragraph 2 of subsection A of Section 2-401 of Title 63 of the Oklahoma Statutes;

95. Manufacturing or distributing a controlled substance or synthetic controlled substance, as provided for in paragraph 1 of subsection C of Section 2-401 of Title 63 of the Oklahoma Statutes;

96. Larceny, burglary, or theft of a controlled dangerous substance, as provided for in subsection A of Section 2-403 of Title 63 of the Oklahoma Statutes;

97. Obtaining or attempting to obtain any controlled dangerous substance by fraud, deceit, misrepresentation, or subterfuge, as provided for in paragraph 1 of subsection A of Section 2-407 of Title 63 of the Oklahoma Statutes;

98. Obtaining or attempting to obtain any controlled dangerous substance by forgery of, alteration of, or changing any information on a prescription or any written order, as provided for in paragraph 2 of subsection A of Section 2-407 of Title 63 of the Oklahoma Statutes;

99. Obtaining or attempting to obtain any controlled dangerous substance by the concealment of a material fact, as provided for in paragraph 3 of subsection A of Section 2-407 of Title 63 of the Oklahoma Statutes;

100. Obtaining or attempting to obtain any controlled dangerous substance by the use of a false name or false address, as provided for in paragraph 4 of subsection A of Section 2-407 of Title 63 of the Oklahoma Statutes;

101. Obtaining or attempting to obtain any controlled dangerous substance by failing to disclose the receipt or prescription of a controlled dangerous substance of the same or similar therapeutic use from another practitioner, as provided for in paragraph 5 of subsection A of Section 2-407 of Title 63 of the Oklahoma Statutes;

102. Manufacturing, creating, delivering, or possessing an original prescription form or counterfeit prescription form, as provided for in subsection B of Section 2-407 of Title 63 of the Oklahoma Statutes;

103. Receiving or acquiring proceeds known to be derived from any violation of the Uniform Controlled Dangerous Substances Act, as provided for in subsection A of Section 2-503.1 of Title 63 of the Oklahoma Statutes;

104. Knowingly or intentionally giving, selling, transferring, trading, investing, concealing, transporting, or maintaining an interest in anything of value which is intended to be used for committing a violation of the Uniform Controlled Dangerous Substances Act, as provided for in subsection B of Section 2-503.1 of Title 63 of the Oklahoma Statutes;

105. Directing, planning, organizing, initiating, financing, managing, supervising, or facilitating the transportation or transfer of proceeds known to be derived from a violation of the Uniform Controlled Dangerous Substances Act, as provided for in subsection C of Section 2-503.1 of Title 63 of the Oklahoma Statutes;

106. Conducting a financial transaction involving proceeds derived from a violation of the Uniform Controlled Dangerous Substances Act for the purpose of concealing or disguising the nature, location, source, ownership, or control of the proceeds known to be derived from a violation of the Uniform Controlled Dangerous Substances Act, as provided for in subsection D of Section 2-503.1 of Title 63 of the Oklahoma Statutes;

107. Encouraging, facilitating, or allowing access to any money transmitter equipment for unlawful purposes, as provided for in subsection B of Section 2-503.1d of Title 63 of the Oklahoma Statutes;

108. Using a money services business or electronic funds transfer network to facilitate any violation of the Uniform Controlled Dangerous Substances Act, as provided for in Section 2-503.1e of Title 63 of the Oklahoma Statutes;

109. Structuring, assisting, or attempting to structure any unlawful transaction with one or more financial or nonfinancial trades or businesses, as provided for in Section 2-503.1g of Title 63 of the Oklahoma Statutes;

110. Using explosive agent to kill, injure, or intimidate or to damage property, as provided for in subsection B of Section 124.8 of Title 63 of the Oklahoma Statutes;

~~110.~~ 111. Altering, counterfeiting, defacing, destroying, disguising, falsifying, forging, obliterating, or removing a hull identification number of a vessel or motor, as provided for in subsection B of Section 4253 of Title 63 of the Oklahoma Statutes;

~~111. Commit or attempt~~

112. Committing or attempting to commit certain violations of the Vessel and Motor Chop Shop, Stolen and Altered Property Act, as provided for in subsection D of Section 4253 of Title 63 of the Oklahoma Statutes;

~~112.~~ 113. Giving a false or bogus check in payment or remittance of taxes, fees, penalties, or interest levied pursuant to any state tax laws and the value of the false or bogus check is Five Hundred Dollars (\$500.00) or more, as provided for in Section 218.1 of Title 68 of the Oklahoma Statutes;

~~113.~~ 114. Perjury by providing false answers to any questions from the Oklahoma Tax Commission or making or presenting any false affidavit to be filed with the Oklahoma Tax Commission, as provided for in Section 244 of Title 68 of the Oklahoma Statutes;

~~114.~~ 115. Perjury by verifying by oath, affirmation, or declaration, any false report or false return that is to be filed with the Oklahoma Tax Commission, as provided for in Section 246 of Title 68 of the Oklahoma Statutes;

~~115.~~ 116. Making or manufacturing any tax stamp or falsely or fraudulently forging, counterfeiting, reproducing, or possessing any tax stamp, as provided for in subsection ~~(a)~~ A of Section 317 of Title 68 of the Oklahoma Statutes;

~~116.~~ 117. Offering or selling unregistered securities, as provided for in Section 1-301 of Title 71 of the Oklahoma Statutes;

~~117.~~ 118. Issuing investment certificates when insolvent by an investment certificate issuer, as provided for in paragraph 1 of subsection K of Section 1-308 of Title 71 of the Oklahoma Statutes;

~~118.~~ 119. Transacting business as a broker-dealer without being registered as a broker-dealer, as provided for in subsection A of Section 1-401 of Title 71 of the Oklahoma Statutes;

~~119.~~ 120. Employing or associating with an individual for security transaction purposes when the registration of the individual is suspended or revoked or the individual is barred from employment or association with a broker-dealer, as provided for in subsection C of Section 1-401 of Title 71 of the Oklahoma Statutes;

~~120.~~ 121. Transacting business as an agent without being registered as an agent, as provided for in subsection A of Section 1-402 of Title 71 of the Oklahoma Statutes;

~~121.~~ 122. Employing or associating with an agent who transacts business on behalf of broker-dealers when the agent is not registered, as provided for in subsection D of Section 1-402 of Title 71 of the Oklahoma Statutes;

~~122.~~ 123. Conducting business on behalf of a broker-dealer when the registration of the agent is suspended or revoked or the individual is barred from employment or association with a broker-dealer, as provided for in subsection F of Section 1-402 of Title 71 of the Oklahoma Statutes;

~~123.~~ 124. Transacting business as an investment adviser without being registered as an investment adviser, as provided for in subsection A of Section 1-403 of Title 71 of the Oklahoma Statutes;

~~124.~~ 125. Employing or associating with an individual to engage in providing investment advice when the registration of the individual is suspended or revoked or the individual is barred from employment or association with an investment adviser, as provided for in subsection C of Section 1-403 of Title 71 of the Oklahoma Statutes;

~~125.~~ 126. Employing or associating with an individual required to be registered as an investment adviser representative who is not registered as an investment adviser representative, as provided for in subsection D of Section 1-403 of Title 71 of the Oklahoma Statutes;

~~126.~~ 127. Transacting business as an investment adviser representative without being registered as an investment adviser representative, as provided for in subsection A of Section 1-404 of Title 71 of the Oklahoma Statutes;

~~127.~~ 128. Conducting business on behalf of an investment adviser or ~~federal-covered~~ federal covered investment adviser when the registration of the investment adviser representative is suspended or revoked or the individual is barred from employment or association with an investment adviser or ~~federal-covered~~ federal covered investment adviser, as provided for in subsection E of Section 1-404 of Title 71 of the Oklahoma Statutes;

~~128.~~ 129. Employing a device, scheme, or artifice to defraud another when offering, selling, or purchasing a security, as provided for in paragraph 1 of Section 1-501 of Title 71 of the Oklahoma Statutes;

~~129.~~ 130. Making an untrue statement of a material fact or omitting a material fact when offering, selling, or purchasing a security, as provided for in paragraph 2 of Section 1-501 of Title 71 of the Oklahoma Statutes;

~~130.~~ 131. Engaging in an act, practice, or course of business that operates as a fraud or deceit upon another person when offering, selling, or purchasing a security, as provided for in paragraph 3 of Section 1-501 of Title 71 of the Oklahoma Statutes;

~~131.~~ 132. Employing a device, scheme, or artifice to defraud another when advising others for compensation as to the value of securities, as provided for in paragraph 1 of subsection A of Section 1-502 of Title 71 of the Oklahoma Statutes;

~~132.~~ 133. Making an untrue statement of a material fact or omitting a material fact when advising others for compensation as to the value of securities, as provided for in paragraph 2 of subsection A of Section 1-502 of Title 71 of the Oklahoma Statutes;

~~133.~~ 134. Engaging in an act, practice, or course of business that operates as a fraud or deceit upon another person when advising others for compensation as to the value of securities, as provided

for in paragraph 3 of subsection A of Section 1-502 of Title 71 of the Oklahoma Statutes;

~~134.~~ 135. Making false or misleading statements in a record, as provided for in Section 1-505 of Title 71 of the Oklahoma Statutes;

~~135.~~ 136. Making or causing to be made to a purchaser, customer, client, or prospective customer or client, an inconsistent representation, as provided for in Section 1-506 of Title 71 of the Oklahoma Statutes;

~~136.~~ 137. Willfully violating certain provisions of the Oklahoma Uniform Securities Act of 2004, as provided for in subsection A of Section 1-508 of Title 71 of the Oklahoma Statutes;

~~137.~~ 138. Offering or selling any business opportunity without being registered under the Oklahoma Business Opportunity Sales Act, as provided for in Section 806 of Title 71 of the Oklahoma Statutes;

~~138.~~ 139. Offering or selling any business opportunity without a written disclosure being filed, as provided for in subsection A of Section 808 of Title 71 of the Oklahoma Statutes;

~~139.~~ 140. Offering or selling any business opportunity without a business opportunity contract or agreement, as provided for in subsection A of Section 809 of Title 71 of the Oklahoma Statutes;

~~140.~~ 141. Making or using any specific representations from the Oklahoma Business Opportunity Sales Act without having a minimum net worth of Fifty Thousand Dollars (\$50,000.00), as provided for in Section 811 of Title 71 of the Oklahoma Statutes;

~~141.~~ 142. Using information filed with or obtained by the Administrator of the Oklahoma Department of Securities that is not public for the personal benefit of the Administrator or any officers or employees of the Administrator, as provided for in subsection B of Section 812 of Title 71 of the Oklahoma Statutes;

~~142.~~ 143. Employing any device, scheme, or artifice to defraud in connection with offering or selling any business opportunity, as provided for in paragraph 1 of Section 819 of Title 71 of the Oklahoma Statutes;

~~143.~~ 144. Making any untrue statement of a material fact or omitting a material fact in connection with offering or selling any business opportunity, as provided for in paragraph 2 of Section 819 of Title 71 of the Oklahoma Statutes;

~~144.~~ 145. Engaging in any act, practice, or course of business which operates as a fraud or deceit in connection with offering or selling any business opportunity, as provided for in paragraph 3 of Section 819 of Title 71 of the Oklahoma Statutes;

~~145.~~ 146. Making or causing to be made any false or misleading statements or omitting to state a material fact necessary in any document filed with the Administrator of the Oklahoma Department of Securities or in any proceeding pursuant to the Oklahoma Business Opportunity Sales Act, as provided for in Section 820 of Title 71 of the Oklahoma Statutes;

~~146.~~ 147. Filing any application for registration that is false, incomplete, or misleading, as provided for in Section 821 of Title 71 of the Oklahoma Statutes;

~~147.~~ 148. Publishing, circulating, or using any advertising that contains untrue statements of material facts or omits to state material facts necessary, as provided for in Section 822 of Title 71 of the Oklahoma Statutes;

~~148.~~ 149. Taking or receiving any rebate, percentage of contract, money, or any other thing of value by an officer of the Office of Management and Enterprise Services from any person, firm, or corporation, as provided for in Section 71 of Title 74 of the Oklahoma Statutes;

~~149.~~ 150. Monopolizing, attempting to monopolize, or conspiring to monopolize any part of trade or commerce, as provided for in subsection B of Section 203 of Title 79 of the Oklahoma Statutes;

~~150.~~ 151. Discrimination in price between different purchasers of commodities by any person engaged in commerce, as provided for in Section 204 of Title 79 of the Oklahoma Statutes;

~~151.~~ 152. Violation of the Oklahoma Antitrust Reform Act, as provided for in Section 206 of Title 79 of the Oklahoma Statutes; and

~~152.~~ 153. Having any interest, directly or indirectly, in any contract for the purchase of property or construction of work by or for the Grand River Dam Authority by a director, officer, agent, or employee, as provided for in Section 867 of Title 82 of the Oklahoma Statutes; ~~and~~

~~153. Using explosive agent to kill, injure, or intimidate or to damage property, as provided for in subsection B of Section 124.8 of Title 63 of the Oklahoma Statutes.~~

B. Any person convicted of a Class C2 criminal offense set forth in this section shall be punished by imprisonment in the custody of the Department of Corrections for a term ~~of~~ not more than seven (7) years and shall serve at least twenty percent (20%) of the sentence imposed before release from custody including release to electronic monitoring pursuant to Section 510.9 of Title 57 of the Oklahoma Statutes.

C. 1. Every person who, having been previously convicted of one or two Class C or Class D criminal offenses, commits a Class C2 criminal offense shall, upon conviction, be punished by imprisonment in the custody of the Department of Corrections for a term ~~of~~ not less than two (2) years nor more than ten (10) years and shall serve at least twenty percent (20%) of the sentence imposed before release from custody including release to electronic monitoring pursuant to Section 510.9 of Title 57 of the Oklahoma Statutes.

2. Every person who, having been previously convicted of three Class C or Class D criminal offenses, or one or more Class Y, Class A, or Class B criminal offenses, commits a Class C2 criminal offense shall, upon conviction, be punished by imprisonment in the custody of the Department of Corrections for a term ~~of~~ not less than two (2) years nor more than twelve (12) years and shall serve at least forty percent (40%) of the sentence imposed before release from custody including release to electronic monitoring pursuant to Section 510.9 of Title 57 of the Oklahoma Statutes.

D. Unless specifically exempted pursuant to subsection E of this section, Section 51.1 of ~~Title 21 of the Oklahoma Statutes~~ this title shall not apply to Class C2 criminal offenses.

E. 1. The criminal offenses listed in paragraphs 1, 2, 52, 53, 54, 55, 63, 65, 67, 68, 76, and 77 of subsection A of this section shall be exempt from the penalty provisions provided for in subsections B and C of this section. Persons convicted of the criminal offenses provided for in paragraphs 1, 2, 52, 53, 54, 55, 63, 65, 67, 68, 76, and 77 of subsection A of this section shall be punished in accordance with the corresponding penalties provided for in the Oklahoma Statutes including Section 51.1 of ~~Title 21 of the Oklahoma Statutes~~ this title.

2. The criminal offense listed in paragraph 64 of subsection A of this section shall be exempt from the penalty provision provided for in subsection B of this section. Persons convicted of the criminal offense provided for in paragraph 64 of subsection A of this section shall be punished in accordance with the corresponding penalties as provided for in the Oklahoma Statutes including Section 51.1 of ~~Title 21 of the Oklahoma Statutes~~ this title. The provisions of subsection C of this section still ~~applies~~ apply to the criminal offense listed in paragraph 64 of subsection A of this section.

F. All Class C2 criminal offenses shall be punishable by the corresponding fines as provided for in the Oklahoma Statutes.

SECTION 2. AMENDATORY 47 O.S. 2021, Section 11-902, as amended by Section 1, Chapter 347, O.S.L. 2025 (47 O.S. Supp. 2025, Section 11-902), is amended to read as follows:

Section 11-902. A. It is unlawful and punishable as provided for in this section for any person to drive, operate, or be in actual physical control of a motor vehicle within this state, whether upon public roads, highways, streets, turnpikes, other public places or upon any private road, street, alley, or lane which provides access to one or more ~~single~~ single-family or ~~multi-family~~ multifamily dwellings, who:

1. Has a blood or breath alcohol concentration, as defined in Section 756 of this title, of eight-hundredths (0.08) or more at the time of a test of such person's blood or breath;

2. Is under the influence of alcohol;

3. Has any amount of a Schedule I chemical or controlled substance, as defined in Section 2-204 of Title 63 of the Oklahoma Statutes, or one of its metabolites or analogs in the person's blood, saliva, urine, or any other bodily fluid at the time of a test of such person's blood, saliva, urine, or any other bodily fluid;

4. Is under the influence of any intoxicating substance other than alcohol which may render such person incapable of safely driving or operating a motor vehicle. The timing requirement for the administration of tests pursuant to Section 756 of this title shall not apply to this paragraph; or

5. Is under the combined influence of alcohol and any other intoxicating substance which may render such person incapable of safely driving or operating a motor vehicle. The timing requirement for the administration of tests pursuant to Section 756 of this title shall not apply to this paragraph.

B. The fact that any person charged with a violation of this section is or has been lawfully entitled to use alcohol or a controlled dangerous substance or any other intoxicating substance shall not constitute a defense against any charge of violating this section.

C. 1. Any person who is convicted of a violation of the provisions of this section shall be guilty of a misdemeanor for the first offense and shall:

- a. participate in an assessment and evaluation pursuant to subsection H of this section and shall follow all recommendations made in the assessment and evaluation,
- b. be punished by imprisonment in jail for not less than ten (10) days nor more than one (1) year, and

- c. be fined not more than One Thousand Dollars (\$1,000.00).

2. When two or more separate violations of this section are committed by the same person within a period of one (1) year, such violations may be aggregated and prosecuted as a single offense. An aggregated charge brought pursuant to this subsection shall be filed in the county in which the last violation occurred. Upon filing of an aggregated charge, any pending charge for an underlying violation in another county shall be dismissed without prejudice. Any person who is convicted of the aggregate offense shall be guilty of a Class C2 felony offense and shall participate in an assessment and evaluation pursuant to subsection H of this section and shall be sentenced to:

- a. follow all recommendations made in the assessment and evaluation for treatment at the defendant's expense,
- b. imprisonment as provided for in subsections B through E of Section 20M of Title 21 of the Oklahoma Statutes, and
- c. and a fine not more than Two Thousand Five Hundred Dollars (\$2,500.00).

3. Any person who, having been convicted of or having received deferred judgment for a violation of this section or a violation pursuant to the provisions of any law of this state or another state prohibiting the offenses provided in this section, Section 11-904 of this title, or paragraph 4 of subsection A of Section 852.1 of Title 21 of the Oklahoma Statutes, or having a prior conviction in a municipal criminal court of record for the violation of a municipal ordinance prohibiting the offense provided for in this section, commits a subsequent violation of this section within ten (10) years of the date following the completion of the execution of such sentence or deferred judgment shall, upon conviction, be guilty of a Class C2 felony offense and shall participate in an assessment and evaluation pursuant to subsection H of this section and shall be sentenced to:

- a. follow all recommendations made in the assessment and evaluation for treatment at the defendant's expense,

- b. use of an ignition interlock device, as provided by subparagraph n of paragraph 1 of subsection A of Section 991a of Title 22 of the Oklahoma Statutes,
- c. ~~imprisonment in the custody of the Department of Corrections for not less than one (1) year and not more than five (5) years as provided for in~~ subsections B through E of Section 20M of Title 21 of the Oklahoma Statutes, and
- d. a fine not more than Two Thousand Five Hundred Dollars (\$2,500.00).

However, if the treatment in subsection H of this section does not include residential or inpatient treatment for a period ~~of~~ not less than five (5) days, the person shall serve a term of imprisonment of at least five (5) days.

~~3.~~ 4. Any person who commits a violation of this section after having been convicted of a felony offense pursuant to the provisions of this section or a violation pursuant to the provisions of any law of this state or another state prohibiting the offenses provided for in this section, Section 11-904 of this title, or paragraph 4 of subsection A of Section 852.1 of Title 21 of the Oklahoma Statutes shall be guilty of a Class B4 felony offense and participate in an assessment and evaluation pursuant to subsection H of this section and shall be sentenced to:

- a. follow all recommendations made in the assessment and evaluation for treatment at the defendant's expense,
- b. two hundred forty (240) hours of community service,
- c. use of an ignition interlock device, as provided by subparagraph n of paragraph 1 of subsection A of Section 991a of Title 22 of the Oklahoma Statutes,
- d. imprisonment in the custody of the Department of Corrections for not less than one (1) year and not more than ten (10) years, and

- e. a fine not more than Five Thousand Dollars (\$5,000.00).

However, if the treatment in subsection H of this section does not include residential or inpatient treatment for a period ~~of~~ not less than ten (10) days, the person shall serve a term of imprisonment of at least ten (10) days.

~~4.~~ 5. Any person who commits a violation of this section after having been twice convicted of a felony offense pursuant to the provisions of this section or a violation pursuant to the provisions of any law of this state or another state prohibiting the offenses provided for in this section, Section 11-904 of this title, or paragraph 4 of subsection A of Section 852.1 of Title 21 of the Oklahoma Statutes shall be guilty of a Class B3 felony offense and participate in an assessment and evaluation pursuant to subsection H of this section and shall be sentenced to:

- a. follow all recommendations made in the assessment and evaluation for treatment at the defendant's expense, followed by not less than one (1) year of supervision and periodic testing, as provided in subparagraph q of paragraph 1 of subsection A of Section 991a of Title 22 of the Oklahoma Statutes, at the defendant's expense,
- b. four hundred eighty (480) hours of community service,
- c. use of an ignition interlock device, as provided by subparagraph n of paragraph 1 of subsection A of Section 991a of Title 22 of the Oklahoma Statutes, for a minimum of ninety (90) days,
- d. imprisonment in the custody of the Department of Corrections for not less than one (1) year and not more than twenty (20) years, and
- e. a fine not more than Five Thousand Dollars (\$5,000.00).

However, if the person does not undergo residential or inpatient treatment pursuant to subsection H of this section, the person shall serve a term of imprisonment of at least ten (10) days.

~~5.~~ 6. Any person who, after a previous conviction of a violation of murder in the second degree or manslaughter in the first degree in which the death was caused as a result of driving under the influence of alcohol or other intoxicating substance, is convicted of a violation of this section shall be guilty of a Class A2 felony offense and shall be punished by imprisonment in the custody of the Department of Corrections for not less than five (5) years and not ~~to exceed~~ more than twenty (20) years, and a fine not more than Ten Thousand Dollars (\$10,000.00).

~~6.~~ 7. Provided, however, a conviction from another state shall not be used to enhance punishment pursuant to the provisions of this subsection if that conviction is based on a blood or breath alcohol concentration of less than eight-hundredths (0.08).

~~7.~~ 8. In any case in which a defendant is charged with driving under the influence of alcohol or other intoxicating substance offense within any municipality with a municipal court other than a court of record, the charge shall be presented to the county's district attorney and filed with the district court of the county within which the municipality is located.

D. Any person who is convicted of a violation of driving under the influence while also committing one of more of the following acts:

1. Driving, operating, or being in actual physical control of a motor vehicle while having a blood or breath alcohol concentration of fifteen-hundredths (0.15) or more at the time of a test of such person's blood or breath;

2. Causing a motor vehicle incident involving one or more vehicles that results in a report pursuant to Section 40-102 of this title;

3. Driving in a manner that violates the provisions of Section 11-301, 11-302, 11-306, 11-309, or 11-311 of this title;

4. Driving while eluding peace officers pursuant to Section 540a of Title 21 of the Oklahoma Statutes;

5. Driving with a speed in excess of twenty (20) miles per hour over the speed limit or ten (10) miles per hour over the speed limit within an active school zone;

6. Operating a motor vehicle with a passenger younger than eighteen (18) years of age; or

7. Reckless driving as defined in Section 11-901 of this title, shall, upon conviction, be guilty of aggravated driving under the influence, which shall be a Class B3 felony offense.

E. A person convicted of aggravated driving under the influence shall participate in an assessment and evaluation pursuant to subsection H of this section and shall comply with all recommendations for treatment. Such person shall be sentenced as provided in paragraph 1, 2, 3, 4, ~~or 5~~, or 6 of subsection C of this section and to:

1. Imprisonment as provided in paragraph 1, 2, 3, 4, ~~or 5~~, or 6 of subsection C of this section, provided that:

- a. for a first offense of a violation pursuant to this section, the first ten (10) days of the sentence shall not be subject to probation, suspension, or deferral and may be served by night or weekend incarceration pursuant to Section 991a of Title 22 of the Oklahoma Statutes,
- b. for a second offense of a violation pursuant to this section, the first thirty (30) days of the sentence shall not be subject to probation, suspension, or deferral; provided further, this mandatory minimum period of confinement shall be served in the county jail as a condition of a suspended or deferred sentence, pursuant to Section 991a of Title 22 of the Oklahoma Statutes, and

- c. the portion of the sentence not subject to probation, suspension, or deferral shall increase by thirty (30) days for each subsequent conviction after the second offense;

2. A fine pursuant to paragraph 1, 2, 3, 4, ~~or~~ 5, or 6 of subsection C of this section;

3. Not less than one (1) year of supervision and periodic testing, as provided in subparagraph q of paragraph 1 of subsection A of Section 991a of Title 22 of the Oklahoma Statutes, at the defendant's expense; and

4. An ignition interlock device or devices, as provided by subparagraph n of paragraph 1 of subsection A of Section 991a of Title 22 of the Oklahoma Statutes, for a minimum of one hundred eighty (180) days.

F. When a person is sentenced to imprisonment in the custody of the Department of Corrections, the person shall be processed through the Lexington Assessment and Reception Center or at a place determined by the Director of the Department of Corrections. The Department of Corrections shall classify and assign the person to one or more of the following:

1. The Department of Mental Health and Substance Abuse Services pursuant to paragraph 1 of subsection A of Section 612 of Title 57 of the Oklahoma Statutes; or

2. A correctional facility operated by the Department of Corrections with assignment to substance abuse treatment. Successful completion of a Department-of-Corrections-approved substance abuse treatment program shall satisfy the recommendation for a ten-hour or twenty-four-hour alcohol and drug substance abuse course or treatment program or both. Successful completion of an approved Department of Corrections substance abuse treatment program may precede or follow the required assessment.

G. Service Oklahoma is hereby authorized to reinstate any suspended or revoked driving privilege when the person meets the statutory requirements ~~which~~ that affect the existing driving privilege.

H. Any person who is found guilty of a violation of the provisions of this section shall be ordered to participate in an alcohol and drug substance abuse evaluation and assessment program offered by a certified assessment agency or certified assessor for the purpose of evaluating and assessing the receptivity to treatment and prognosis of the person and shall follow all recommendations made in the assessment and evaluation for treatment. The court shall order the person to reimburse the agency or assessor for the evaluation and assessment. Payment shall be remitted by the defendant or on behalf of the defendant by any third party, provided no state-appropriated funds are utilized. The fee for an evaluation and assessment shall be the amount provided in subsection C of Section 3-460 of Title 43A of the Oklahoma Statutes. The evaluation and assessment shall be conducted at a certified assessment agency, the office of a certified assessor, or at another location as ordered by the court. The agency or assessor shall, within seventy-two (72) hours from the time the person is evaluated and assessed, submit a written report to the court for the purpose of assisting the court in its sentencing determination. The court shall, as a condition of any sentence imposed, including deferred and suspended sentences, require the person to participate in and successfully complete all recommendations from the evaluation, such as an alcohol and substance abuse treatment program pursuant to Section 3-452 of Title 43A of the Oklahoma Statutes. If such report indicates that the evaluation and assessment shows that the defendant would benefit from a ten-hour or twenty-four-hour alcohol and drug substance abuse course or a treatment program or both, the court shall, as a condition of any sentence imposed, including deferred and suspended sentences, require the person to follow all recommendations identified by the evaluation and assessment and ordered by the court. No person, agency, or facility operating an evaluation and assessment program certified by the Department of Mental Health and Substance Abuse Services shall solicit or refer any person evaluated and assessed pursuant to this section for any treatment program or substance abuse service in which such person, agency, or facility has a vested interest; however, this provision shall not be construed to prohibit the court from ordering participation in or any person from voluntarily utilizing a treatment program or substance abuse service offered by such person, agency, or facility. If a person is sentenced to imprisonment in the custody of the Department of Corrections and the court has received a written

evaluation report pursuant to the provisions of this subsection, the report shall be furnished to the Department of Corrections with the judgment and sentence. Any evaluation and assessment report submitted to the court pursuant to the provisions of this subsection shall be handled in a manner which will keep such report confidential from the general public's review. Nothing contained in this subsection shall be construed to prohibit the court from ordering judgment and sentence in the event the defendant fails or refuses to comply with an order of the court to obtain the evaluation and assessment required by this subsection. If the defendant fails or refuses to comply with an order of the court to obtain the evaluation and assessment, Service Oklahoma shall not reinstate driving privileges until the defendant has complied in full with such order. Nothing contained in this subsection shall be construed to prohibit the court from ordering judgment and sentence and any other sanction authorized by law for failure or refusal to comply with an order of the court.

I. Any person who is found guilty of a violation of the provisions of this section shall be required by the court to attend a victims impact panel program, as defined in subsection H of Section 991a of Title 22 of the Oklahoma Statutes, if such a program is offered in the county where the judgment is rendered, and to pay a fee of Seventy-five Dollars (\$75.00), as set by the governing authority of the program and approved by the court, to the program to offset the cost of participation by the defendant, if in the opinion of the court the defendant has the ability to pay such fee.

J. Any person who is found guilty of a felony violation of the provisions of this section shall be required to submit to electronic monitoring as authorized and defined by Section 991a of Title 22 of the Oklahoma Statutes.

K. Any person who is found guilty of a violation of the provisions of this section who has been sentenced by the court to perform any type of community service shall not be permitted to pay a fine in lieu of performing the community service.

~~L. When a person is found guilty of a violation of the provisions of this section, the court shall order, in addition to any other penalty, the defendant to pay an assessment of One Hundred Dollars (\$100.00) to be deposited in the Drug Abuse Education and~~

~~Treatment Revolving Fund created in Section 2-503.2 of Title 63 of the Oklahoma Statutes, upon collection.~~

~~M.~~ 1. When a person is eighteen (18) years of age or older, and is the driver, operator, or person in physical control of a vehicle, and is convicted of violating any provision of this section while transporting or having in the motor vehicle any child less than eighteen (18) years of age, the fine shall be enhanced to double the amount of the fine imposed for the underlying driving under the influence (DUI) violation which shall be in addition to any other penalties allowed by this section.

2. Nothing in this subsection shall prohibit the prosecution of a person pursuant to Section 852.1 of Title 21 of the Oklahoma Statutes who is in violation of any provision of this section or Section 11-904 of this title.

~~N.~~ M. Any plea of guilty, nolo contendere, or finding of guilt for a violation of this section or a violation pursuant to the provisions of any law of this state or another state prohibiting the offenses provided for in this section, Section 11-904 of this title, or paragraph 4 of subsection A of Section 852.1 of Title 21 of the Oklahoma Statutes shall constitute a conviction of the offense for the purpose of this section; provided, any deferred judgment shall only be considered to constitute a conviction for a period of ten (10) years following the completion of any court-imposed probationary term.

~~O.~~ N. If qualified by knowledge, skill, experience, training, or education, a witness shall be allowed to testify in the form of an opinion or otherwise solely on the issue of impairment, but not on the issue of specific alcohol concentration level, relating to the following:

1. The results of any standardized field sobriety test including, but not limited to, the horizontal gaze nystagmus (HGN) test administered by a person who has completed training in standardized field sobriety testing; or

2. Whether a person was under the influence of one or more impairing substances and the category of such impairing substance or substances. A witness who has received training and holds a current

certification as a drug recognition expert shall be qualified to give the testimony in any case in which such testimony may be relevant.

SECTION 3. REPEALER 47 O.S. 2021, Section 11-902, as amended by Section 3, Chapter 172, O.S.L. 2025 (47 O.S. Supp. 2025, Section 11-902), is hereby repealed.

SECTION 4. REPEALER 47 O.S. 2021, Section 11-902, as amended by Section 6, Chapter 305, O.S.L. 2025 (47 O.S. Supp. 2025, Section 11-902), is hereby repealed.

SECTION 5. REPEALER 47 O.S. 2021, Section 11-902, as amended by Section 33, Chapter 486, O.S.L. 2025 (47 O.S. Supp. 2025, Section 11-902), is hereby repealed.

SECTION 6. This act shall become effective November 1, 2026.

Passed the Senate the 14th day of May, 2026.

Presiding Officer of the Senate

Passed the House of Representatives the 4th day of May, 2026.

Presiding Officer of the House
of Representatives

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____

Approved by the Governor of the State of Oklahoma this _____

day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____